

OFFICE OF THE SECRETARY

P.O. Box 942883

Sacramento, CA 94283-8001

JUN 28 2018

Honorable Sharon Ann Chatman
Judge of the Superior Court
County of Santa Clara
191 North First Street
San Jose, CA 95113



Re: Garcia, Christian Antonio
CDC No.: F35246
Case No.: CC596372
Date of Sentence: July 12, 2006

Dear Honorable Sharon Ann Chatman:

The purpose of this letter is to provide the court with authority to resentence Christian Antonio Garcia pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Garcia was sentenced in 2006, and was convicted of section 245, subdivision (a)(1), Assault With A Deadly Weapon. The trial court sentenced inmate Garcia on July 12, 2006. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Garcia's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Garcia's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
First Amended Information

cc: Honorable Patricia M. Lucas, Santa Clara County Presiding Judge
Santa Clara District Attorney
Public Defender

F35246

F35246

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT OR FULL-TERM CONSECUTIVE COUNT FORM
[Not to be used for multiple count convictions or for 1/3 consecutive sentences.]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA			
BRANCH OR JUDICIAL DISTRICT HOJ			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Christian Antonio Garcia		DOB: 09-14-84	CASE NUMBER CC596372
AKA: CII#: BOOKING INFORMATION: PFN DVK151 CEN: 05035161			
☐ NOT PRESENT			
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT	
DATE OF HEARING 07-12-2006	DEPT. NO. 42	JUDGE Sharon Ann Chatman	
CLERK S. Papadopoulos	REPORTER K. Johnson	PROBATION NUMBER OR PROBATION OFFICER J. Hill	
COUNSEL FOR PEOPLE B. Field		COUNSEL FOR DEFENDANT R. Espinosa	
☐ State Attorney General		☒ APPTD.	

1. Defendant was convicted of the commission of the following felony:				YEAR CRIME COMMITTED	DATE OF CONVICTION (Month/Date/Year)	CONVICTED BY			TERM L, M, U	TIME IMPOSED	
CNT.	CODE	SECTION NO.	CRIME			Jury	Court	Plea		YRS.	MOS.
1	PC	245(a)(1)	Assault with a deadly weapon	2005	04-12-2006	X			M	3	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENTS.

COUNT	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
1	PC12022.7(a)	3	PC186.22(b)(1)	10					13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTION OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENTS.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).
5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):
Restitution Fine of: \$3200 per PC 1202.4(b) forthwith per PC 2085.5; \$3200 per PC 1202.45 suspended unless parole is revoked.
Restitution per PC 1202.4(f): ☐ / ☐ Amount to be determined to: ☐ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 7, below.)
Fine(s) [PA included]: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS
Lab Fee \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 + PA per HS 11372.7(a).
6. TESTING: a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☐ other (specify):
7. Other orders (specify): Advised 3yrs parole, Spanish interp -Duncan. Motion for New Trial denied. Register PC186.30. SECA \$20. Not own/possess deadly weapons.

8. TOTAL TIME IMPOSED excluding county jail term:	16	0
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9. ☐ This sentence is to run concurrent with (specify):

10. Execution of sentence imposed

a. ☒ at Initial sentencing hearing.

d. ☐ at resentencing per recall of commitment. (PC 1170(d).)

b. ☐ at resentencing per decision on appeal.

e. ☐ other (specify):

c. ☐ after revocation of probation.

11. DATE SENTENCE PRONOUNCED 07-12-2006	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS: 375 INCLUDING:	ACTUAL LOCAL TIME 56	LOCAL CONDUCT CREDITS 431	☐ 4019 ☒ 2933.1	SERVED TIME IN STATE INSTITUTION (number of days) ☐ DMH ☐ CDC ☐ CRC
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12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to: ☒ reception center designated by Director, California Department of Corrections.

☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE Gina Colbenson	DATE 07-14-2006
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1202.4(b). This form may be used but must be referred to in this document.

Form Adopted for Mandatory Use

Judicial Council of California

CR-290.1 [Rev. January 1, 2003]

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

Penal Code
§§ 1170, 1213, 1213.5



1B HALL OF JUSTICE
190 W. HEDDING STREET
SAN JOSE, CA 95110
PEOPLE VS. CHRISTIAN ANTONIO GARCIA
L.K.A. 2388 KAREN DR 10
SANTA CLARA, CA 95050
JUDGE HON. SHARON ANN CHATMAN
REPORTER K. JOHNSON
DEF. ATTY. ESPINOSA, RUBEN
CHARGES F(001)PC245(A)(1)

CORRECTED MINUTE ORDER ISSUED

JUL 14 2005

JP For

DV:
CHILD:

HEARING
AGENCY
STATUS

07/12/2005
09/14/1984

S. PAPADOPOULOS

MOTION FOR NEW TRIAL

SJ-04313-2957 -HATHAWAY

I-SET -100000

CASE NO:

CC596372

05035161

CEN

DEPT.

CDY BK:Y

DVK151 M

TW Y

VIOLATION DATE:

06/26/2005

NEXT APPEARANCE

☒ Defendant Present ☐ Not Present ☒ Atty Present AK ☒ PD / Legal Aide / Special App AD
☐ Arr'd ☐ Adv ☐ Arr Wav ☐ Amend Comp/Info ☐ Arr ☐ Plea ☐ IDC ☐ PTC ☐ Prob / Sent ☐ Interpreter Gomez-Sunear ☐ Sworn
☐ PC977 ☐ Filed ☐ On File ☐ Repr. Adv / Wav ☐ Bail/ OR/ SORP ☐ Rect Dr Rpt ☐ FAR/ ERC ☐ Bail Apply ☐ Balance Exonerated
☐ NG ☐ Entered by CRT ☐ NGBRI / Adv ☐ PSet ☐ Prelim ☐ Readiness ☐ S / B MTC ☐ Bail Exonerated ☐ Forfeited ☐ Bond #
☐ Denies Priors/ Allegations/ Enhancements/Refusal ☐ Further ☐ Jury ☐ CT ☐ Peo / Def Wav Jury ☐ Reassumption Filed ☐ Forfeiture Set Aside ☐ Bail Rein
☐ TW ☐ TNW ☐ TW / WD ☐ TW Sentence ☐ Ref'd ☐ \$ ☐ Costs Within 30 Days to Court
☐ Ref / Appt PD / AD / Legal Aide ☐ Conflict Decl ☐ APO / Prop 36 ☐ P36 Re-Assm't ☐ SORP / OR ☐ Revoked ☐ Reinstated ☐ May Post & Forfeit
☐ Relieved ☐ Appt'd ☐ Crim Proc Susp ☐ Rein ☐ BW Ordered \$ ☐ Stayed ☐ To Issue
☒ Hrg on Motion New trial ☐ Doubt Decl Pursuant PC 1368 ☐ No Cite Release/SCIT ☐ No Request ☐ Cash Only
☐ Granted ☒ Denied ☐ Submitted ☐ Off Cal ☐ Subm on Report ☐ Found ☐ BW Set Aside ☐ Recalled ☐ Filed
☐ Stip to Comm ☐ Drs. Appointed ☐ Max Term ☐ Committed ☐ Proof of
☐ Prelim Wav ☐ Certified to General Jurisdiction ☐ MDA / COM Amended to
☐ Amended to ☐ (M) VC12500(a) / VC23103(a) ☐ Pur VC23103.5 ☐ DA Stmt Filed ☐ Other:
PLEA Conditions: ☐ None ☐ No State Prison ☐ PC17 after 1 Yr Prob ☐ Includes VOP ☐ Add to Cal
☐ Jail / Prison Term of
☐ Dismissal / Striking ☐ Subm time of Sent ☐ Harvey Stip
☐ Adv ☐ Max Pen ☐ Parole/Prob ☐ Appeal ☐ Immig ☒ Reg PC290/HS11590/PC457.1 ☒ PC186.30 ☐ Future Serious Felony ☐ PC12021 (110) ☐ VC14607.8/PC666
☐ Wav Right to ☐ Counsel ☐ Court / Jury Trial ☐ Subpoena / Confront / Examine Witnesses ☐ Self-Incrimination ☐ Written Waiver filed ☐ Plea / Absentia filed
☐ COP ☐ GUILTY ☐ NOLO CONTENDERE to charges & admits enhancements / allegations / priors ☐ PC17 ☐ Arbuckle ☐ Factual Basis found ☐ Findings stated
☐ Prop 36 Granted / Unamenable / Refused / Term ☐ DEJ Eligibility Filed ☐ DEJ Granted / Rein / Term ☐ Fee \$ ☐ Guilty Plea Rendered
☐ Waives Referral ☐ Ref'd to APO Full Rpt ☐ PROBATION DENIED ☐ FINES/FEES: PAY TO ☒ Ref to DOR ☐ COURT ☐ TODAY
☐ Sentenced to ☐ State Prison/County Jail ☐ Sent Suspended ☐ COUNT \$ ☐ + PA \$ ☐ Purs HS11350d
PROBATION ☐ Execution ☐ Imposition of sentence suspended for probation period ☐ COUNT \$ ☐ + PA \$
☐ COURT ☐ FORMAL PROBATION GRANTED for ☐ Days / Mos / Yrs ☐ AIDS / CPP \$ ☐ + PA \$
☐ Report to APO within ☐ Days ☐ Terminated ☐ Upon Release ☐ DPF \$ ☐ + PA \$
☐ Perform ☐ Hrs Volunteer Work as directed PO / SAP / CAP ☐ In lieu of fine ☐ LAB \$ ☐ + PA \$
☐ Not drive w/o valid DL & Ins ☐ Adv VC23600 ☐ HTO ☐ Delete FOP/MOP ☐ DRF/RF \$ ☐ Add'l RF \$ ☐ Susp'd PC1202.45
☐ MOP ☐ FOP ☐ 12 hrs ☐ 3 mos ☐ 6 mos ☐ Enroll within ☐ days ☐ AEF \$ ☐ Original Fine \$
☐ DL Susp/Restr'd/Rvk'd for ☐ To, from, during Work/AlcoPrg/Jail/Sch/App ☐ SECA \$ ☐ CTS PC2900.5 \$
☐ IID No/Ordered/Rmv'd Term ☐ Yrs ☐ DSA thru APO / DOR / CRT ☐ Filed ☐ NC \$ ☐ TOTAL DUE \$
☐ No contact with victim or family / co-defts unless appr by APO ☐ PC1202.05 ☐ ASF / CPF \$ ☐ Payments Granted / Modified
☐ DVPO issued / mod / term'd Exp ☐ Victim Present ☐ AR \$ ☐ \$ / Mo beginning
☒ Not own/possess deadly weapons ☐ Destroy / Return Weapon ☐ SHELTER \$ ☐ FINE STAYED
☐ Submit Search/Testing ☐ Educ/Voc Trng/Emp ☐ No alcohol / drugs or where sold ☐ DV \$ ☐ Committed @ \$ / day ☐ May Pay Out
☐ Substance Abuse, DV, Psych, Parenting, Anger Mgmt, Theft cnsl / prgm ☐ ATTY \$ ☐ Consec/Conc to
☒ PC296 (DNA) ☐ PC1202.1 HIV Test / Education ☐ P/INVEST \$ ☐ Fine / Fees ☐ Deemed Satisfied ☐ Commuted
VOP: ☐ Wav ☐ Arr'd ☐ Admits/Denies Viol ☐ Court Finds VOP / No VOP ☐ C/JAF \$ ☐ P/SUP \$ ☐ Mo ☐ Waived
Prob Rein / Mod / Term'd / Revoked / Remains Revoked / Ext to ☐ Restitution \$ ☐ to
☐ Original Terms & Conditions Except as Amended herein ☐ To be determined by APO/Court ☐ Referred to VWAC ☐ Collect Civilly
☐ Co-terminous with ☐ No Further Penalties / Reviews

Count	F/M	Violation	Prison Term / Yrs	Enhancement / Priors	Yrs / Styd / Strkn	HRS / DAYS / MOS
1	F	PC 245(A)(1)	3yr - mid	PC 12022.7(a)	3yrs C/S to CT1	
				PC 186.22(b)(1)	10yrs C/S to CT1	

Enhancement Yrs/S Enhancement Yrs/S Enhancement Yrs/S Enhancement Yrs/S Enhancement Yrs/S Total
CTS = 36 ACT + 56 ☐ PC4019 ☒ PC2933.1 = 431 TOTAL DAYS TOTAL TERM 16 yrs CDC
☒ Straight time ☐ In Camp ☐ WWP ☐ PC1209 Fees ☐ Waived ☐ Court Rec ☐ All / Except ☐ EMP/PSP/WF/ERP/DRP/Co Parole/NP
☐ Sent Deemed Served ☐ Rpt to Local Parole ☒ Adv of 3 Yrs Parole/Appeal Rights ☐ Consec ☐ Conc to
☐ Bal CJ Susp ☐ All but ☐ Hrs/Days/Mos ☐ On Cond Complete Residential Treatment Prgm ☐ Serve Consec MO/TU/WE/TH/FR/SA/SU
☐ Pre-process ☐ AM/PM ☐ Stay / Surrender / Transport to ☐ @ ☐ AM/PM or Sooner
☐ REMANDED-BAIL \$ ☐ NO BAIL ☒ COMMITTED ☐ RELEASED ☐ OR ☐ SORP ☐ DOC TO CONTACT JAC FOR ASSM'T ☐ P36
☐ AS COND OF SORP ☐ BAIL INCREASED / REDUCED ☐ TO PRGM AS REC BY JAC-DOC TO TRANSPORT FOR BALANCE OF JAIL ☐ UPON AVAIL BED
PROMISE TO APPEAR: I will appear at all times and places as ordered by the Court, and have read and understand all conditions set forth on the reverse side.
BY POOR ORIGINAL DEFENDANT



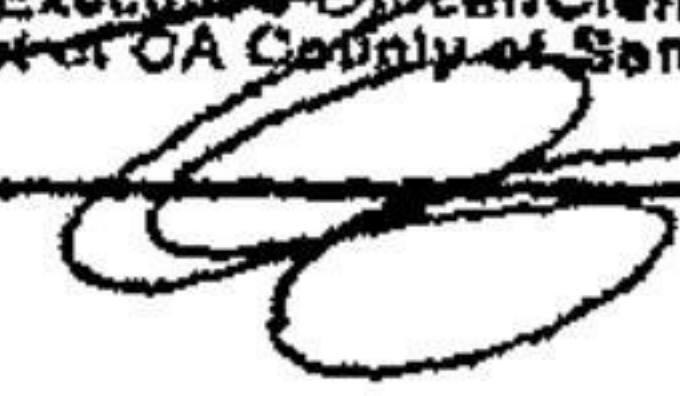
The foregoing instrument is a correct copy of
the original on file in this office.

ATTEST:

JUL 14 2006

KIRI TORRE

Chief Executive Officer/Clerk
Superior Court of CA County of Santa Clara

By:  DEPUTY

3
SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

THE PEOPLE OF THE STATE OF CALIFORNIA,
Plaintiff,

vs.

SERGIO OMARDIAZ ALONSO (5/5/1982),
1332 CADILLA DRIVE ##7, SAN JOSE, CA
CHRISTIAN ANTONIO GARCIA (9/14/1984),
2388 KAREN DRIVE ##10, SANTA CLARA, CA
Defendant(s)

03/28/06

DA NO 050618022

CEN

05035153 SA HELD 03/28/2006

05035161 CG HELD 03/28/2006

FIRST AMENDED
INFORMATION NO. CC596372

FILED

MAR 30 2006

INFORMATION
SUMMARY

WITTORE
Chief, Executive C. Office
Superior Court, CA County of Santa Clara
By:  SECURITY

<u>Count</u>	<u>Charge</u>	<u>Charge Range</u>	<u>Defendant</u>	<u>Allegation</u>	<u>Alleg. Effect</u>
1	PC245(a)(1)	2-3-4	SERGIO OMARDIAZ ALONSO	PC12022.7(a)	3 YEARS
			CHRISTIAN ANTONIO GARCIA	PC186.22(b)(1)(C) PC12022.7(a)	10 Years 3 YEARS
	Prior/Alleg:		SERGIO OMARDIAZ ALONSO	PC186.22(b)(1)(C) PC667.5(b)	10 Years 1 yr

The District Attorney of the County of Santa Clara, by this Information alleges that:

COUNT 1

On or about June 26, 2005, in the County of Santa Clara, State of California, the crime of ASSAULT WITH A DEADLY WEAPON, in violation of PENAL CODE SECTION 245(a)(1), a Felony, was committed by SERGIO OMARDIAZ ALONSO AND CHRISTIAN ANTONIO GARCIA who did commit an assault upon the person of Carlos Perez with a deadly weapon and instrument other than a firearm, a(n) rock.

(GBI1) It is further alleged that in the commission and attempted commission of the offense charged above, the defendant, SERGIO OMARDIAZ ALONSO, personally inflicted great bodily injury upon Carlos Perez, a person not an accomplice to the offense, within the meaning of Penal Code sections 12022.7(a) and 1203(e)(3).

(GBI1) It is further alleged that in the commission and attempted commission of the offense charged above, the defendant, CHRISTIAN ANTONIO GARCIA, personally inflicted great bodily injury upon Carlos Perez, a person not an accomplice to the offense, within the meaning of Penal Code sections 12022.7(a) and 1203(e)(3).

(OTH) It is further alleged that the defendant, SERGIO OMARDIAZ ALONSO, committed the offense charged above for the benefit of, at the direction of, and in association with a criminal street gang, with the specific intent to promote, further, and assist in criminal conduct by gang members, within the meaning of Penal Code section 186.22(b)(1)(C).

(OTH) It is further alleged that the defendant, CHRISTIAN ANTONIO GARCIA, committed the offense charged above for the benefit of, at the direction of, and in association with a criminal street gang, with the specific intent to promote, further, and assist in criminal conduct by gang members, within the meaning of Penal Code section 186.22(b)(1)(C).

...IOR CONVICTION (PC 667.5(b))

It is further alleged within the meaning of Penal Code section 667.5(b) that prior to the commission of the offense(s) charged above, the defendant, SERGIO OMARDIAZ ALONSO, was convicted of a felony:

Possession of a Controlled Substance, Health and Safety Code section 11350, California

Superior Court, Santa Clara County (CC330460)

and, for that offense, the defendant served a prison term, which was separate from any other prison term alleged in this pleading, and since serving that term, the defendant has not remained free of both prison custody and the commission of an offense resulting in a felony conviction for a period of five years.

Any defendant, including a juvenile, who is convicted of and pleads guilty and no contest to any felony offense, including any attempt to commit the offense, charged in this complaint or information is required to provide buccal swab samples, right thumbprints and a full palm print impression of each hand, and any blood specimens or other biological samples required pursuant to the DNA and Forensic Identification Database and Data Bank Act of 1998 and Penal Code section 296, et seq.

Pursuant to Penal Code Sections 1054 through 1054.7, inclusive, the defendant requests that, within 15 days, the defendant and/or his/her attorney disclose: (A) The names and addresses of persons, other than the defendant, he/she intends to call as witnesses at trial, together with any relevant written or recorded statements of those persons, or reports of the statements of those persons, including any reports or statements of experts made in connection with the case, and including the results of any physical or mental examinations, scientific tests, experiments, or comparisons which the defendant intends to offer as evidence at the trial. (B) Any real evidence which the defendant intends to offer in evidence at the trial. This request is a continuing request, to cover not only all such material currently in existence, but all material which comes into existence to the conclusion of this case.

George W. Kennedy
District Attorney

By *Benjamin T. Field*
Benjamin T. Field
Deputy District Attorney

THE FOREGOING INSTRUMENT IS
A CORRECT COPY OF THE ORIGINAL
ON FILE IN THIS OFFICE
ATTEST: KIRI TORRE

OCT 13 2006

CHIEF EXECUTIVE OFFICER/CLERK
SUPERIOR COURT OF CALIFORNIA COUNTY OF SANTA CLARA
IN AND FOR THE COUNTY OF SANTA CLARA
BY *Susie Duran* DEPUTY

SUSIE DURAN

